AFFIDAVIT

STATE OF ARIZONA

CITY OF PHOENIX

I, Ashley Krumenacker, make the following statement to Daniel J. Cabot, who has identified himself as an EEO Contract Investigator for the U.S. Department of Health and Human Services, Indian Health Services (IHS) ("the Agency"). I understand that this statement is not confidential and may be shown to the interested parties (those with a legal right to know). I understand that this statement may be used in evidence.

I understand that the U.S. Department of Health and Human Services, Indian Health Services (HIS), has accepted for investigation the following claims of Kevin Turnage, (Complainant):

Complainant alleges that he was subjected to discrimination on the bases of race (Caucasian), color (White), sex (Male), age (Y.O.B. 1973), religion (Christian), reprisal (opposition to discrimination/participation in the EEO process/prior EEO activity), and subjected to harassment (sexual/non-sexual)/hostile work environment when:

1. Complainant alleged that Agency failed to timely process his Family Medical Leave Act (FMLA) paperwork filed on or about January 2023;

2. On or about March 2, 2023, Complainant alleged he received a low PMAP score;

3. Complainant alleged that on or about March 21, 2023, he was placed on administrative leave, escorted out of the facility by security, and had his system access removed;

4. Complainant alleged that on or about April 2023, he was reassigned and placed on a 120-day detail; and,

5. Complainant alleged he was subjected to hostile work environment including, but not limited to:
   a. Upon reassignment, Complainant alleged he was denied access to the Men's restroom;
   b. Upon reassignment, Complainant alleged he was not provided office keys; and,
   c. Upon reassignment, Complainant was placed in an undesirable location.

Q1. Please state your full name for the record.

A1. Ashley Krumenacker.

Q2. For what Agency do you work?

A2: I work for the Indian Health Service, Health and Human Services.

Q3. What is your current title, series, and grade, to what organizational unit/department are you assigned, and what is your duty location (city/state)?

A3: I am a Pharmacist, O-3, a Commissioned Corps Officer, at the Phoenix Indian Medical Center.

Q4. For how long have you been in your current position? (If you were in a different position at the time of the alleged discrimination, please identify the position you held at that time by title, series, grade, organizational unit/department, and duty location.)

A4. Since January 2022

Q5. Please identify your first- and second-line supervisors, including name and title, and length of relationship.

A5. My first line supervisor is Kristi Johnson, (Native American, color tan, female, age 40's, religion unknown), Outpatient Pharmacy Supervisor. I have worked for Kristi Johnson since January 2022. I have no second line supervisor.

Q6. What is or was your working relationship with Complainant?

A6. When Complainant was assigned to the Phoenix Medical Center I was the Director of Immunizations for the hospital. This would have been from August 2022 until he was detailed out of that unit in March 2023.

Q7. What is your race and color, sex, month and year of birth and religion?

A7: My race and color are white. I am a female. I was born in September 1991. I am a Catholic.

Q8: What is Complainant's race, color, sex, age, and religion, and how are you aware of these traits?

A8: Complainant's race and color is white and he is a male. I know this by looking at him. I think he is in his 40's. I do not know his religion.

Q9: Were you aware of any protected activity engaged in by Complainant before he filed his current EEO complaint?

A9 : No.

Q10: In the last two years have you had any EEO or harassment claims sustained against you?

A10: No.

Q11: Have you ever filed any EEO complaints against your Agency?

A11: No.

Q12: How and when did you become aware of Complainant's current EEO complaint?

A12. When you first sent me an e-mail telling me to participate in this investigation.

Claim 1: Complainant alleged that Agency failed to timely process his Family Medical Leave Act (FMLA) paperwork filed on or about January 2023;

Q13. What do you know about this event?

A13. Nothing.

Claim 2: On or about March 2, 2023, Complainant alleged he received a low PMAP score;

Q14. What do you know about this event?

A14. Nothing.

Claim 3: Complainant alleged that ou or about March 21, 2023, he was placed on administrative leave, escorted out of the facility by security, and had his system access removed;

Q15. Witness testimony reveals Complainant was placed on administrative leave after he made the following comment about one of his nurses, Tonie Grieve, that if you don't get her out of my clinic I am going to beat her fucking ass. Supposedly this comment was made in front of you. What did you recall hearing regarding this comment by Complainant?

A15. I was in the Complainant's office with Brandi Benjamim and Complainant and I was thinking I should not be here because they were discussing nursing issues. I thought about leaving but Brandi was sort of blocking the doorway. I did not hear the comment in question allegedly made to Tonie by Complainant.

Claim 4: Complainant alleged that on or about April 2023, he was reassigned and placed on a 120-day detail; and,

Q16. What do you know about this event?

A16. Only that Complainant told me it had happened.

Claim 5: Complainant alleged he was subjected to hostile work environment including, but not limited to:

a. Upon reassignment, Complainant alleged he was denied access to the Men's restroom;

b. Upon reassignment, Complainant alleged he was not provided office keys; and,

c. Upon reassignment, Complainant was placed in an undesirable location.

Q17. What do you know about this event?

A17. Only that Complainant had been moved to the Aztec Building.

Q18. Have you ever been trained in the area of harassment prevention and/or hostile work environment prevention in the workplace? If so, when was the last time you were trained?

A18. Yes, on an annual basis.

Q19. Did Complainant ever complain to you about harassment related to his race, color, sex, age, religion, and/or protected activity)? When?

A19. No.

Q20. Complainant contends Jason White tampered with you as a witness and tried to get you to change her testimony. Was this testimony about the aforementioned comment which led to Complainant being placed on administrative leave in March 2023?

A20. Yes. I spoke to Jason White who was investigating this incident. He said I was the only witness present, He wanted me to sign a form and presented me with a draft statement, which I said did not reflect what I had told him

Q21. What sort of testimony were you giving?

A21. When I initially spoke to Mr. White I did not know I was giving actual testimony. When I left Complainant and Brandi I had no idea what was unfolding. I did not know Mr. White was conducting an investigation.

Q22. How did Mr. White's actions affect your testimony?

A22. The statement he wanted me to sign did not reflect accurately what I had told him

Q23. Were you allowed to testify as you wished?

A23. Yes, but I feel like I was caught in the middle here. This was a nursing issue and I should not have been involved.

Q24. Complainant sees Jason's actions here as reprisal against him. What are your thoughts here?

A24. I do not know what reprisal means. Mr. White came into my office, without following proper procedure, as I had later come to learn, and interviewed me. He later presented a draft statement summarizing what he claimed I had said in the interview but was contrary to my recollection of our conversation.

Q25. Do you believe Mr. White's actions created a hostile work environment for Complainant?

A25. I have no idea.

Q26. Is there anything you would like to add to your testimony at this point?

A26. No.

I have read the forgoing Affidavit consisting of ____ page(s) and I hereby attest under penalty of perjury that it is true and correct to the best of my knowledge and belief. I have signed or initialed each page. I have been given the opportunity to make any corrections and/or additions, which I have submitted.

Ashley N. Krumenacker -S Digitally signed by Ashley N. Krumenacker -S Date: 2023.08.16 12:26:15 -07'00'

Ashley Krumenacker
Affiant Name

Date

Daniel J. Cabot
EEO Investigator

8/17/23
Date

**********NOTHING BELOW THIS LINE**********

PRIVACY ACT NOTICE TO EEO COMPLAINT INTERVIEW WITNESSES (OTHER THAN COMPLAINANT) FOR DISCRIMINATION COMPLAINT INVESTIGATION INTERVIEW

GENERAL

This information is provided pursuant to Public Law 93-579 (Privacy Act of 1974), December 31, 1974, for individuals supplying information for inclusion in a system of records.

AUTHORITY

The authority to collect the information requested by affidavit, statement or other type of testimony is derived from one or more of the following:

Title 5, Code of Federal Regulations, Sections 5.2 and 5.3; Title 29, Code of Federal Regulations, Section 1613/1614; Title 5, United States Code, Sections 1303 and 1304; Title 42, United States Code, Section 2000e-16; and Executive Order 11478, as amended.

PURPOSES AND USES

The information you supply will be used along with data developed to resolve or otherwise determine the merits of the equal employment opportunity (EEO) complaint of discrimination and/or reprisal. This information may be furnished to designated officers and employees of agencies and departments of the Federal Government in order to resolve or otherwise determine the merits of the EEO complaint of discrimination and/or reprisal. The information may also be disclosed to any agency of the Federal Government having a working relationship with regard to EEO Commission activities, or to others for uses as published in the Federal Register.

EFFECTS OF NON-DISCLOSURE

Disclosure of the information sought is voluntary; however, failure to furnish the information will result in a direction by the head of the agency, or his/her designated representative, to produce or provide such information as is available. Failure to provide the information at that time may result in the initiation of disciplinary proceedings against you up to and including removal. Applicants in such cases may be refused employment.

Disclosure of information by present or prospective Government contractors is also voluntary, although failure to furnish the above requested information where the contract so provides may result in administrative sanctions, including disqualification to enter into a contract or termination of an existing contract.

Signature of Investigator

Ashley N. Krumenacker -S Digitally signed by Ashley N. Krumenacker -S Date: 2023.08.16 09:32:54 -07'00'

Signature of Affiant

8/16/23

Date

Place